

		Defendant challenges the sufficiency of the sixth cause of action for fraudulent inducement on the grounds that Plaintiff failed to allege fraud with the requisite specificity. Defendant contends that Plaintiff did not sufficiently allege specific facts, communications, exclusive knowledge, an actionable omission or concealment by Defendant. Further, Defendant argues that Plaintiff has failed to plead facts establishing a direct transaction or a duty to disclose. Finally, Defendant challenges the sufficiency of Plaintiff's punitive damages allegations. Plaintiff, however, did not file an opposition to the demurrer or motion to strike and failed to address any of the arguments that Defendant makes. The failure to oppose a demurrer may be construed as having abandoned the claims. (See <i>Herzberg v. County of Plumas</i> (2005) 133 Cal.App.4th 1, 20 ("Plaintiffs did not oppose the County's demurrer to this portion of their seventh cause of action and have submitted no argument on the issue in their briefs on appeal. Accordingly, we deem plaintiffs to have abandoned the issue").) In addition, it is axiomatic that the failure to challenge a contention in a brief results in the concession of that argument. (<i>DuPont Merck Pharmaceutical Co. v. Sup. Ct.</i> (2000) 78 Cal. App. 4th 562, 566 ("By failing to argue the contrary, plaintiffs concede this issue"); <i>Westside Center Associates v. Safeway Stores 23, Inc.</i> (1996) 42 Cal. App. 4th 507, 529 ("failure to address the threshold question . . . effectively concedes that issue and renders its remaining arguments moot"); <i>Glendale Redevelopment Agency v. Parks</i> (1993) 18 Cal. App. 4th 1409, 1424 (issue is impliedly conceded by failing to address it).) Accordingly, the court finds Plaintiff's failure to substantively oppose any of the arguments raised in the demurrer and motion to strike an abandonment of the issues and a concession that Defendant's demurrer/motion has merit. Moving Defendant to give notice.
5	Hoang vs. Toyota Motor Sales, U.S.A., Inc.	OFF CALENDAR
6	Nguyen vs. TD Bank	OFF CALENDAR

7	Patterson vs. Nayebaziz	TENTATIVE RULING: <u>Demurrer and Motion to Strike</u> Defendants Cameray Pointe Homeowners Association, and Powerstone Property Management, Inc. demurs to and moves to strike portions of the Complaint filed by Plaintiffs Briant Patterson and Randi Carlson. For the following reasons, the demurer is OVERRULED and the motion to strike is DENIED. 1. <u>Compliance with Code of Civil Procedure Section 430.41</u> A party demurring or moving to strike a pleading is required to meet and confer “in person or by telephone” with the party that filed the pleading under Section 430.41. (Code Civ. Proc. § 430.41.) Here, MP’s counsel satisfied this requirement. (Biles Dec.) 2. <u>General Principles</u> A demurrer presents an issue of law regarding the sufficiency of the allegations set forth in the complaint. (<i>Lambert v. Carneghi</i> (2008) 158 Cal.App.4th 1120, 1126.) The challenge is limited to the “four corners” of the pleading (which includes exhibits attached and incorporated therein) or from matters outside the pleading which are judicially noticeable under Evidence Code §§ 451 or 452. Although California courts take a liberal view of inartfully drawn complaints, it remains essential that a complaint set forth the actionable facts relied upon with sufficient precision to inform the defendant of what plaintiff is complaining, and what remedies are being sought. (<i>Leek v. Cooper</i> (2011) 194 Cal.App.4th 399, 413.) On demurrer, a complaint must be liberally construed. (Code Civ. Proc., § 452; <i>Stevens v. Superior Court</i> (1999) 75 Cal.App.4th 594, 601.) All material facts properly pleaded, and reasonable inferences, must be accepted as true. (<i>Aubry v. Tri-City Hospital Dist.</i> (1992) 2 Cal.4th 962, 966-67.) A pleading is adequate if it contains a reasonably precise statement of the ultimate facts, in ordinary and concise language, and with sufficient detail to acquaint a defendant with the nature, source and extent of the claim. The degree of detail required depends on the extent to which the defendant in fairness needs such detail, which can be conveniently provided by the plaintiff. Less particularity is required when the defendant ought to have co-extensive or superior knowledge of the facts. Under normal circumstances, there is no need for specificity in pleading evidentiary facts. However, bare
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